

DELIBERATE INDIFFERENCE AT THE CLASSIFICATION STAGE

CAM STRIKE VERSION (Condensed Legal Submission)

Original Doctrine Draft — Stacey Kahns-Gray

I. COVER LETTER

CORE LEGAL QUESTION

Can institutional intake misclassification, downgrade, or preservation of weaker first-stage classification regarding early sex-based conduct constitute a structurally significant Title IX / OCR compliance failure where stronger available safeguarding architecture is not activated, thereby suppressing legally recognizable harm, notice formation, pattern visibility, or threshold maturation before traditional deliberate indifference analysis fully attaches?

CORE THEORY

Classification determines legal visibility. Where legal visibility depends upon recognizable harm, recognizable harm depends upon first-stage classification strength, category precision, and pathway activation.

STRUCTURAL LEGAL INVERSION

The issue is not solely: Was the response unreasonable after notice?

It is also: Did intake-stage classification suppress whether legally sufficient notice could coherently form?

LOCKED STRIKE LINE

Where neutrality does not begin from equal baseline conditions, first-stage classification determines not only the response pathway—but whether legally recognizable harm forms at all.

II. CORE MECHANISM — CLASSIFICATION-STAGE SUPPRESSION

GOVERNING CONDITION

distorted baseline → unequal developmental and interpretive starting conditions

MECHANISM

same or comparable signal → first-stage classification (downgrade / ambiguity / peer-conflict framing) → weaker category precision → fragmented record formation → reduced aggregation → suppressed pattern visibility → weakened threshold formation

RESULT

Harm pathway may not fail because harm is absent. It may fail because classification prevented harm from becoming legally recognizable.

STRUCTURAL MEANING

Classification is not descriptive. It is pathway allocation architecture determining: → safeguarding strength → record coherence → aggregation survivability → legal visibility

III. OCR OPERATIONAL PROOF

A. CARMEL UNIFIED — WRONG-CATEGORY FAILURE

notice → institutional action but → sex-based harm handled through narrowed or misaligned classification → stronger safeguarding architecture not activated → recurrence → OCR violation

Principle: Institutional action within the wrong classification does not satisfy Title IX.

B. SAN DIEGO UNIFIED — FRAGMENTATION AS SUPPRESSION

notice → fragmented intake routing (police / HR / CPS / informal systems) → no unified Title IX determination → no aggregation → recurrence → OCR violation

Principle: Fragmentation may suppress legally recognizable harm even where signals exist.

C. CAPACITY CONFIRMATION (CHINO VALLEY)

OCR required: → tracking systems → coordinator oversight → aggregation → operational safeguarding architecture

Principle: Institutions can operationalize classification-dependent protection when required.

IV. LEGAL GAP — DAVIS / OCR / GEBSER MISALIGNMENT

THRESHOLD STRUCTURE

Davis: → severe + pervasive + objectively offensive → actual knowledge → unreasonable response

Gebser: → actual notice to appropriate authority

OCR: → possible sexual harassment → early inquiry obligation

GAP MECHANISM

early signal → classification downgrade / fragmentation → reduced aggregation → weakened notice coherence → diminished threshold formation

RESULT

Davis may appear unmet not because harm is absent, but because classification-stage systems suppressed threshold formation.

LOCKED LINE

Legal standards may fail not due to absence of harm, but due to upstream suppression of recognizable harm formation.

V. FINAL SYNTHESIS

FULL SEQUENCE

distorted baseline → first-stage classification downgrade → weaker pathway preservation → fragmented records → suppressed aggregation → weakened legal visibility → threshold distortion

FINAL DOCTRINAL POSITION

This doctrine examines whether deliberate indifference may function not only after notice, but through suppression of notice formation at the classification stage.

FINAL LOCK

If: harm pathway exists → stronger classification available → weaker classification preserved

Then: review may extend beyond response failure into whether classification-stage conduct prevented harm from becoming legally recognizable.

SHORTEST FORM

distorted baseline → classification → pathway → visibility → liability